

HOUSE No. 5546

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, July 6, 2026.

The committee on Consumer Protection and Professional Licensure, to whom was referred the petition (accompanied by bill, House, No. 5425) of Kate Donaghue and James B. Eldridge (by vote of the town) that the town of Southborough be authorized to grant an additional license for the sale of all alcoholic beverages not to be drunk on the premises in said town, reports recommending that the accompanying bill (House, No. 5546) ought to pass.

For the committee,

TACKEY CHAN.

HOUSE No. 5546

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the town of Southborough to grant an additional license for the sale of all alcoholic beverages not to be drunk on the premises.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) Notwithstanding section 17 of chapter 138 of the General Laws, the
2 licensing authority of the town of Southborough may grant 1 additional license for the sale of all
3 alcoholic beverages not to be drunk on the premises pursuant to section 15 of said chapter 138 to
4 Costco Atlantic Liquors, Inc., d/b/a Costco Liquors, located at 21 Coslin Drive in the town of
5 Southborough. The license granted pursuant to this act shall be subject to all of said chapter 138
6 except said section 17.

7 (b) The licensing authority shall not approve the transfer of a license granted pursuant to
8 this act to any other location, but it may grant the license to a new applicant at the same location
9 if the applicant files with the licensing authority a letter from the department of revenue and a
10 letter from the department of unemployment assistance indicating that the license is in good
11 standing with those departments and that all applicable taxes, fees and contributions have been
12 paid.

13 (c) If a licensee terminates or fails to renew a license granted under this section or any
14 such license is cancelled, revoked, or no longer in use, it shall be returned physically, with all of
15 the legal rights, privileges, and restrictions pertaining thereto, to the licensing authority which
16 may, within 3 years after such return, then grant the license to a new applicant at the same
17 location and under the same conditions as specified in this section, otherwise such license shall
18 dissolve.

19 (d) The license granted under this act shall be issued within 2 years after the effective
20 date of this act; provided, however, that if the license is originally granted within that time
21 period, it may be granted to a new applicant under subsections (b) and (c) thereafter.

22 SECTION 2. This action shall take effect upon its passage.